

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.66920 of 2020

Muhammad Maqsood Aslam

Versus

Province of Punjab, etc.

J U D G M E N T

Date of hearing:	03.06.2022.
Petitioner by:	Ch. Shabbir Hussain, Advocate. Hafiz Tariq Nasim, Advocate / <i>Amicus Curiae</i> .
Respondents by:	Barrister Ameer Abbas Ali Khan, Assistant Advocate General. M/s Shan Saeed Ghuman, Rana Zohaib and Wali Muhammad, Advocates. Khalid Mehmood, Registrar UET, Taxila.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through instant petition, petitioner has sought direction from this Court for respondents to issue retirement notification of petitioner w.e.f. 30.09.2019 and award pensionary benefits along with payment of outstanding salaries w.e.f 01.01.2019 to 30.09.2019.

2. Brief facts of the case are that petitioner was appointed as Assistant Engineer (Civil) by the order of the Vice Chancellor, UET, Lahore, but was posted at the UET, Taxila Campus. Petitioner's services were regularized through order dated 30.04.1983. Petitioner continuously served at UET, Taxila Campus till his deputation to Irrigation Department, whereafter UET, Lahore issued *No Objection Certificate* to petitioner for permanent absorption in Irrigation Department which was rejected and order of repatriation was issued on 04.01.1997 by Irrigation Department. Feeling aggrieved of this order, petitioner filed **W.P. No. 357-S-**

1997/BWP, wherein operation of repatriation was suspended, however, the Writ Petition was finally dismissed in the year 2006 and Intra Court Appeal in this regard was also dismissed in the year 2010. Petitioner remained serving in Irrigation Department up till 13.12.2018 as Deputationist for a total period of about 20-years, however, was not absorbed as his repatriation order was passed on 13.12.2018. Petitioner attained the age of superannuation on 30.09.2019, however, his retirement notification and consequent pensionary benefits were not released. Hence, instant petition.

3. Learned counsel for petitioner submits petitioner is permanent employee of respondent-UET, Lahore and his services with respondent No.3 were as a deputationist, however, he stood repatriated to his parent department. Adds that petitioner reached the age of superannuation on 30.09.2019, however, there is inaction on part of respondent No.2/UET, Lahore to issue retirement notification as well as pensionary benefits without any legal justification. Further submits that impugned inaction on part of respondent No.2/UET is not only against petitioner's fundamental rights guaranteed by the Constitution of the Islamic Republic of Pakistan, 1973 but also the verdicts of Hon'ble superior Courts. In support, he relied upon Syed Mohsin Ali Hasani v. Government of Pakistan and another (1990 SCMR 1685), Mazhar Ali v. Federation of Pakistan / President of Pakistan through the Secretary, Establishment Division, Cabinet Secretariat and 2 others (1992 SCMR 435), Muhammad Israrullah v. Assistant Director, Manpower and others (2005 SCMR 716), Haji Muhammad Ismail Memon, Advocate (PLD 2007 Supreme Court 35), Secretary, Government of Punjab, Finance Department and 269 others v. M. Ismail Tayer and 269 others [2015 PLC (C.S.) 296], Imtiaz Ahmad Sheikh v. Secretary, Establishment Division and another [1999 PLC (C.S.) 655], Ch. Ghulam Muhammad v. Secretary to Government of the Punjab, Agriculture Department,

Lahore and 2 others [2011 PLC (C.S.) 1384] and Satya Narain Pareek v. State of Rajasthan and another (1997 PSC 900).

4. Learned *Amicus Curiae*, appointed for assistance of the Court, has also supported the contentions of petitioner. He, while relying upon esteemed judgments of Hon'ble Apex Court, has concluded that the petitioner was an employee of UET, Lahore as according to Section 3 of the University of Engineering and Technology, Taxila Act, 1994, it was mandatory that the employee should have been serving at Taxila Campus. Whereas petitioner was serving in Irrigation Department at the relevant time.

5. Conversely, learned Legal Advisor for respondent-UET, Lahore contends that petitioner's ad hoc appointment was with UET, Lahore's campus at Taxila, his services were also regularized over there and after promulgation of University of Engineering and Technology Taxila Act, 1994 ("**the Act of 1994**"), the said college was absorbed into UET Taxila. He adds that petitioner has alternate remedy to approach the Treasurer of UET Taxila and the Act of 1994 provides a robust mechanism to redress petitioner's grievance. He further submits that UET, Lahore had already issued *No Objection Certification* for petitioner's absorption in Irrigation Department, so, he had no lien with UET, Lahore.

6. Arguments heard. Available record perused.

7. It is reiterated that petitioner served the Irrigation Department on deputation for almost two decades and his final repatriation was ordered on 13.12.2018. The main contention of learned Legal Advisor for respondent-UET, Lahore is that as per Section 3 of the University of Engineering and Technology, Taxila Act, 1994, petitioner stood employee of UET, Taxila. It would be expedient to go through the aforesaid provision, which is reproduced hereunder:-

"3. **Incorporation:--** (1) There shall be a University of Engineering and Technology to be called University of Engineering and Technology, Taxila,

with the main Campus at Taxila and sub-campuses at such other places as may be established by the University with the permission of the Government.

(2) The University shall consist of the Chancellor, the Pro-Chancellor, the Vice-Chancellor, one or more Pro-Vice-Chancellors, Members of the Syndicate and the Academic Council, Officers, Teachers and Authorities.

(3) The University shall be a body corporate by the name of University of Engineering and Technology, Taxila, and shall have a perpetual succession and a common seal and may, by the aforesaid name, sue and be sue.

(4) The University shall be competent to acquire and hold property, both movable and immovable, or sell or otherwise transfer any property vested in it or enter into contract for purposes of this Act.

(5) All properties, owned or possessed and all rights and all interests held or enjoyed by, and all liabilities subsisting against the University of Engineering and Technology, Lahore, in respect of the campus at Taxila immediately before coming into force of this Act, shall stand transferred to the University.

(6) All regular employees including teachers and officers of the University of Engineering and Technology, Lahore, serving at the aforesaid campus, immediately before coming into force of this Act, shall stand transferred to the University under its statutes, Regulations and Rules."

[emphasis supplied]

8. Record reflects that UET, Taxila Campus was made University of Engineering & Technology, Taxila in the year 1994, and as per Section 3(6) supra, regular employees of UET, Lahore serving at Taxila Campus were declared employees of the UET Taxila. Admittedly, petitioner was not virtually serving in UET, Taxila Campus when the same was converted into independent University, rather he was deputed in Irrigation Department being the employee of UET, Lahore.

9. Needless to observe here that civil servant / deputationist, who had never been absorbed permanently in the borrowing department would continue to be on deputation and his lien could not be terminated in his parent department. Even his lien cannot be terminated with his consent, unless he has been confirmed against some other permanent post. Reference can be made to Executive Engineer, Provincial Building Circle, Lahore v. Muzaffar Bil Haq

and 2 others (2000 SCMR 656) and Chief Secretary, Government of N.-W.F.P. and others v. Syed Zafarmand Ali (2005 SCMR 1212).

10. It is a sorry state of affairs that petitioner has been going from pillar to post for getting his pensionary benefits for such a long period since 30.09.2019, which speaks volumes about the so-called all-round performance of the authorities at the helm of affairs, despite the fact that question of payment of pensionary benefits is purely a matter pertaining to fundamental rights. Pension is a measure of socio-economic justice which inheres economic security in the fall of life. A person who enters the Government / public service has also something to look forward to after his / her retirement viz. his retirement benefits, the grant of pension being the most valuable of such benefits. Pension is like a salary and is no longer a bounty or an *ex-gratia* payment, but is a right acquired after putting in satisfactory service for the prescribed minimum period. Right to pension has been conferred by law and cannot be arbitrarily abridged or reduced or refused except to the extent and in the manner provided in the relevant rules and it becomes the property of the retiring employee or civil / public servant as a matter of right upon the termination of his / her service. Pension, like salary, is a regular source of livelihood, and thus, is protected by the right to life enshrined in and guaranteed by Article 9 of the Constitution of the Islamic Republic of Pakistan, 1973. Reliance is placed upon Secretary, Government of Punjab, Finance Department and 269 others v. M. Ismail Tayer and 269 others (2014 SCMR 1336) and Nasir Kamal v. Federation of Pakistan through Secretary, Ministry of Maritime Affairs, Islamabad and another [2021 PLC (C.S.) 1226].

11. While dealing with somewhat similar proposition, the Hon'ble Apex Court vide judgment dated 21.02.2013, passed in **Civil Appeal No.48 of 2013** titled International Islamic

University, Islamabad, thr. its President, Islamabad v. Jehanzeb Khan & others, has held as under:-

“3. ... We may point out that a person who reaches the age of superannuation, on his retirement, is entitled as matter of respect and grace to receive the service / pensionary benefits so that after retirement he may not run from pillar to post for getting proportionate benefits and if some of the portions of the pension are to be shared by the other department(s), it should be the duty of the department where he lastly served, to collect the same and handover his dues to him on the date when relieved from his duties.”

12. It is clear from available record that respondent-UET, Lahore shall be finally responsible to pay the pension / pensionary benefits to the petitioner, however, for the period he worked in the Irrigation Department, UET, Lahore shall collect the pensionary contribution to that period as its own, however, petitioner cannot be denied the right of pension rather UET, Lahore is obliged to pay the petitioner within shortest possible time in the light of the dictum of law laid down in I.A. Sharwani and others v. Government of Pakistan through Secretary, Finance Division, Islamabad and others (1991 SCMR 1041) and Secretary, Government of Punjab, Finance Department and 269 others v. M. Ismail Tayer and 269 others (2014 SCMR 1336).

13. In view of the above, instant petition is **allowed** in the manner that respondent-UET, Lahore / respondent No.2 is directed to proceed in the matter qua issuance of retirement notification and award of pensionary benefits as well as outstanding salaries, if any, strictly in accordance with law as well as case law referred supra.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge